

61	Palafox vs. American Honda Motor Co., Inc. 24-01405648	Motion for Summary Judgment and/or Adjudication The Motion for Summary Judgment or Adjudication, brought by Defendant American Honda Motor Co., Inc. is DENIED, in whole. Initially, Plaintiff’s Objections to the Declaration of Saed Atallah, Objections Nos. 1 through 6, are SUSTAINED, for lack of personal knowledge and hearsay. The bulk of Counsel’s declaration purports to recite the repair history of the relevant vehicle and attached repair orders; however, Counsel has not established personal knowledge, as to the information stated. Personal knowledge requires “a present recollection of an impression derived from the exercise of the witness’ own senses.” (<i>People v. Lewis</i> (2001) 26 Cal.4th 334, 356.) Additionally, “[i]n the absence of personal knowledge, a witness’s testimony or a declarant’s statement is no better than rank hearsay or, even worse, pure speculation.” (<i>People v. Valencia</i> (2006) 146 Cal.App.4th 92, 104.) “The admission of a hearsay statement not based on personal knowledge puts the factfinder in the position of determining the truth of a statement without knowledge of its source and without any means of evaluating the reliability of the source of the information.” (<i>Ibid.</i>) Further, the attached repair orders have not been properly authenticated, as to Exhibits 4, 5 and 7. Although Plaintiff labelled her objection as “[m]istakes the document,” she challenges the authenticity of the exhibits, in each case stating the documents are not the repair orders they purport to be. (See Objections Nos. 3, 4 and 6 [ROA No. 189].) Proceeding to the merits, with respect to Plaintiff’s First Cause of Action, “every sale of consumer goods that are sold at retail in this state shall be accompanied by the manufacturer’s and the retail seller’s implied warranty that the goods are merchantable.” (Civ. Code, § 1792.) As relevant here, the “implied warranty of merchantability” requires a consumer good “[p]ass without objection in the trade under the contract description” and be “fit for the ordinary purposes for which such goods are used.” (Civ. Code, § 1791.1, subd. (a)(1) and (2).) However, the above requirements are “more or less a synonym” for each other and “substantially overlap.” (<i>Brand v. Hyundai Motor America</i> (2014) 226 Cal.App.4th 1538, 1546 and 1550.) “Accordingly, a core test of merchantability is fitness for the ordinary purpose for which such goods are used.” (<i>Ibid.</i> [internal quotations omitted].) A vehicle is “fit for the ordinary purpose” for which it is used, when it is “in safe condition and substantially free of defects.” (<i>Isip v. Mercedes-</i>
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		The above is sufficient to demonstrate a triable issue, with respect to whether the vehicle was “fit for its ordinary purpose,” as required to be merchantable. With respect to Plaintiff’s Second Cause of Action, if a manufacturer “is unable to service or repair a new motor vehicle...to conform to the applicable express warranties after a reasonable number of attempts, the manufacturer shall either promptly replace the new motor vehicle...or promptly make restitution to the buyer....” (Civ. Code, § 1793.2, subd. (d)(2).) As explained in <i>Silvio v. Ford Motor Co.</i> (2003) 109 Cal.App.4th 1205, “[t]he statute requires the manufacturer to afford the specified remedies of restitution or replacement if that manufacturer is unable to repair the vehicle ‘after a reasonable number of <i>attempts</i>.’” (<i>Id.</i> at p. 1208.) “‘Attempts’ is plural. The statute does not require the manufacturer to make restitution or replace a vehicle if it has had only one opportunity to repair that vehicle.” (<i>Ibid.</i>) Citing <i>Silvio</i>, Defendant asserts Plaintiff’s claim fails. (See Motion: 8:27-9:2 [ROA No. 157].) The implied argument is that <i>each</i> reported complaint was repaired after one attempt; however, as explained above, Defendant did not establish via admissible evidence that Plaintiff’s complaints were repaired. Additionally, Plaintiff submitted sufficient evidence to dispute this assertion and establish a triable issue. Based on all the above, Defendant’s Motion for Summary Judgment and/or Adjudication is DENIED.
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